

STATE OF NEW YORK

7886--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 11, 2025

Introduced by M. of A. KAY -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to authorizing certain persons to use an ATV to enter and exit certain lands for ice fishing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 2403 of the vehicle and traffic law is amended by
2 adding a new subdivision 2-a to read as follows:

3 2-a. Public lands permitting ice fishing. (a) During times when ice
4 conditions are reasonably safe for the operation of ATVs, as determined
5 by guidelines provided by the department of environmental conservation,
6 and only on lands where snowmobile use is permitted by the department of
7 environmental conservation, including wildlife management areas, state
8 forests, forest preserves, and state parks, a person may operate an ATV
9 to enter and exit such lands when such person is sixty-five years of age
10 or older or such person is severely disabled. Such persons may utilize
11 an ATV as the operator or passenger and shall restrict such usage to
12 traveling to and from ice fishing locations.

13 (b) For the purposes of this subdivision, "severely disabled" shall
14 mean any person having any one or more of the following impairments,
15 disabilities or conditions which are permanent in nature and have been
16 certified by a physician:

17 (i) limited or no use of one or both lower limbs;
18 (ii) neuro-muscular dysfunction which severely limits mobility;
19 (iii) a physical or mental impairment or condition other than those
20 specified in subparagraphs (i) and (ii) of this paragraph, but which is
21 of such nature as to impose unusual hardship in accessing ice fishing

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11283-05-6

locations and such impairment or condition is certified by a physician, physician assistant or nurse practitioner, to the extent authorized by law and consistent with subdivision three of section six thousand nine hundred two of the education law, duly licensed to practice in this state, or a podiatrist duly licensed to practice podiatry in this state or an optometrist duly licensed to practice optometry in this state, as constituting an equal degree of disability (specifying the particular condition) so as to prevent such person from getting around without great difficulty in accordance with subdivision two of this section;
(iv) blindness.

§ 2. This act shall take effect immediately.